

SENATE No. 2374

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing electronic signatures with motor vehicle title and registration transactions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/27/2025</i>

SENATE No. 2374

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 2374) of Sal N. DiDomenico and Angelo J. Puppola, Jr. for legislation to authorize electronic signatures with motor vehicle title and registration transactions. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing electronic signatures with motor vehicle title and registration transactions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 90J the
2 following chapter:-

3 Chapter 90K. Electronic Signatures with Motor Vehicle Title and Registration
4 Transactions

5 Section 1. Definitions. In this chapter, except when the context otherwise requires, the
6 following words shall have the following meanings:—

7 “Electronic signature”, as defined in section 2 of chapter 110G.

8 “Electronic”, as defined in section 2 of chapter 110G.

9 “Physical odometer document”, a physical document as defined in Part 580 of Title 49
10 United States Code of Federal Regulations containing an odometer disclosure statement printed
11 on paper by a secure printing process or other secure process by any jurisdiction in compliance

with the Part. Physical odometer documents, for the purposes of this chapter, are limited to certificates of title, secure powers of attorney, and reassignment documents. The term does not include any other form or document, even if the document contains a space for an odometer reading.

Section 2. Acceptance of Electronic Signatures.

(a) The registrar shall accept electronic signatures on any document, form, physical odometer document, or record necessary or required by the registrar related to or for the purposes of registering or titling any motor vehicle in the commonwealth, inclusive of, but not limited to, chapters 90 and 90D.

(b) A physical odometer document that is made electronic by imaging, scanning, or similar process: (i) is not an “electronic power of attorney” or “electronic title” as those terms are defined in Part 580 of Title 49 United States Code of Federal Regulations; and (ii) shall be accepted by the registrar if subsequently executed with an electronic signature.

(c) The registrar shall accept any document, form, physical odometer document, or record with electronic signatures by: (i) electronic means through any process or system available, including but not limited to the electronic vehicle registration program, to accept documents, forms, physical odometer documents, or records by electronic means; or (ii) physical means, such that the document, form, physical odometer document, or record is printed to paper.

(d) A physical odometer document which is made electronic by imaging, scanning or other similar process that is subsequently executed with an electronic signature that requires submission to the registrar by physical means shall require the physical odometer document, in its original format, prior to its execution by electronic signature, to accompany the printed copy

if the physical odometer document is a: (i) certificate of title; or (ii) secure power of attorney or dealer reassignment and it has physically completed data or information, such as by handwriting or printing, that preceded the execution by electronic signature.

Section 3. Requirements and Limitations.

(a) The registrar: (i) may require a document containing an electronic signature to include an indication that the signature is electronic; (ii) shall not require an electronic signature process or an electronic signature vendor be certified by the registrar before accepting a document that is executed with an electronic signature; (iii) shall not require a document which has been executed with an electronic signature to be converted to physical format by printing for any purpose, except when submission by physical means is necessary and required; (iv) shall not impose any additional requirement upon an electronic signature except as authorized by this chapter; and (v) may require a certification of authenticity, audit trail, or similar statement or proof of assurance.

(b) The system or person granting access to the system used to capture an electronic signature must verify the identity of the user accessing the system. The system must: (i) be securely maintained; (ii) capture and retain the user information, including the Internet Protocol address of the signer and date and timestamp of system access or electronic signature capture; and (iii) retain all information provided to the system for a period of five years, which shall be made available to the registrar, other regulatory agencies, or law enforcement upon request.

(c) This chapter shall not be construed to require, limit, prohibit, or otherwise hinder the

ability of the registrar to provide electronic services, systems, or alternative methods to receiving and transmitting electronic data, documents, or records, including electronic signature capturing or identity verification.

(d) This chapter shall not be construed to require, limit, prohibit, or otherwise hinder the registrar to provide or issue an “electronic power of attorney” or “electronic title” as those terms are defined in Part 580 of Title 49 United States Code of Federal Regulations, or provide an electronic signature process, system, platform, or service.

Section 4. Utilization.

Electronic signatures may not be used for any purpose other than the purpose indicated by the signer on the document and shall be linked to their respective electronic records to ensure that the signatures cannot be excised, copied, or otherwise transferred unless expressly authorized by the signer.

Section 5. Conflict.

This chapter shall prevail in any conflict arising with another provision in chapters 90, 90D, and 110G of the General Laws. Chapter 110G of the General Laws shall govern any area not expressly addressed in this chapter.

SECTION 2. Any permissive clause not expressly exercised by the registrar by policy, rule, or regulation on or after the effective date is deemed not in effect on the date the electronic signature is captured. The registrar shall not retroactively enforce provisions once exercised.

SECTION 3. This act shall take effect upon its passage.